



**Waweru & 2 others v Munene & 2 others (Environment and Land Case
299 of 2019) [2025] KEELC 6375 (KLR) (23 January 2025) (Judgment)**

Neutral citation: [2025] KEELC 6375 (KLR)

**REPUBLIC OF KENYA
IN THE ENVIRONMENT AND LAND COURT AT NAIROBI
ENVIRONMENT AND LAND CASE 299 OF 2019
J OMANGE, J
JANUARY 23, 2025**

BETWEEN

**WILFRED GAKUYA WAWERU 1ST PLAINTIFF
JULIUS NGANGA GAKUYA 2ND PLAINTIFF
DAVID WAWERU GAKUYA (SUING AS THE LEGAL REPRESENTATIVE OF
THE ESTATE OF ANTONY GAKUYU WAWERU GAAKUYA WAWERU -
DECEASED) 3RD PLAINTIFF**

AND

**PETER KAMAU MUNENE 1ST DEFENDANT
CHIEF LAND REGISTRAR 2ND DEFENDANT
ATTORNEY GENERAL 3RD DEFENDANT**

JUDGMENT

1. Vide a further amended plaint dated 1st April, 2022 the Plaintiffs suing as the representatives of Anthony Gakuya Waweru prayed for a plethora of orders including;
 - a. That there is a permanent injunction against the defendant issued directing the defendant and or his agents/servants/employees/representatives vacate the suit property and-to-hand over immediate vacant possession of the same to the plaintiff.
 - b. A declaration that the plaintiffs' father Anthony Gakuya Waweru alias Gakuya Waweru (Deceased) was a bonafide shareholder of Thome Farmers Company 1 Limited and the rightful; allottee/beneficial owner of plots No. 863 alias LR Nairobi Block 110/782 and 209 alias LR Nairobi Block 110/698 Thome Farmers Company No. 1 Limited by virtue of share certificate No. 290 (2) shares



- c. That the Defendant and/or his agents/servants/employees/representatives to permanently stop any further construction and interference of Nairobi Block 110/782.
 - d. An order of declaration that registration and issuance to the 1st Defendant herein or any other person under whom he acquired his certificate of lease for LR 110/782 was illegal fraudulent and irregular thus incapable of vesting to the 1st Defendant's or any other person any proprietary rights over the suit property.
 - e. To revoke this title and get the bottom of where the title was issued with whose permission since the succession is not concluded.
 - f. In the alternative to prayer (a) and (b) above, an order of declaration that the beneficiaries of Estate of Anthony Gakuya Waweru alias Gakuya Waweru (Deceased) Plaintiffs are entitled to be registered as the proprietors of plot 209 and 863 alias Nairobi/Block 110/782 and LR 110/698 as against the 1st Defendant or any other person on account of Plaintiffs; adverse possession of the suit properties having been in open, quiet, continuous and uninterrupted occupation and possession thereof for thirty five (35) years.
 - g. The Defendant to bear the cost of the suit.
 - h. An order of cancellation of the certificate of Lease in the name of the 1st Defendant and rectification of the land register by the 2nd Defendant and to register the plaintiffs as the rightful registered owner of plot no 863 alias LR Nairobi Block 110/782 on behalf of the estate of Anthony Gakuya Waweru alias Gakuya Waweru (Deceased).
 - i. Any other just equitable relief as this Honourable Court may deem appropriate
 - j. An order of eviction against the 1st Defendant is agents and/or servants or any person claiming under him from Plot No 863 alias LR Nairobi Block 110/782 with immediate effect.
 - k. An order of permanent injunction restraining the 1st Defendant his agents and/or servants or any other person claiming under him from trespassing, interfering, dealing alienating in any other manner from interfering with plot no 863 alias LR Nairobi Block 110/782.
 - l. General damages.
 - m. Mense profits
 - n. The 1st Defendant to bear the cost of the suit
2. The Plaintiff averred that the Plaintiffs father Anthony Gakuya Waweru was the allottee of Plot no 863 which was later registered as Nairobi/Block 110/782. The deceased was a fully paid up owner of share certificate no 290 which the Plaintiffs aver was issued with plot 863 and 209.
 3. It is the Plaintiffs case is that their late father died before he could be issued with a certificate of title in respect of the two titles. They however contend that their father took possession of the two properties in 1988 and fenced the plots using posts and barbed wire.
 4. The Plaintiffs depose that in the year 2018 they noticed that someone had attempted to trespass on plot 863 alias LR 110/782 (hereinafter referred to as the suit property) by excavating a foundation. This prompted their family to place a perimeter wall on the suit property. However in the year 2019, some unknown people again invaded the plot and went ahead to construct a site structure. The Plaintiffs reported the matter to Marurui Police Post where the 1st Defendant showed up with a copy of certificate of lease in his name.



5. The Plaintiffs plead that the registration in the 1st Defendants name was fraudulent as they have always been in possession of the suit property. Further that the 1st Defendant has never been a shareholder and did not buy the land from a shareholder. In any event, the Plaintiffs argue that the Defendant did not pay any consideration nor did he pay any stamp duty or registration fees to the government.
6. The Defendant filed a statement of Defence in which he denied that the suit property forms part of the estate of Anthony Gakuya or that share certificate no 290 translated to Nairobi/Block 110/782. The Defendant deposes that he acquired the suit property from one Rachel Wanjiru in 2016 after carrying out due diligence.
7. The Defendant as the Plaintiff in the counterclaim pleads that he purchased the suit property from Rachel Wanjiru Nduta and was surprised when in 2019 he was informed by his caretaker that the 1st Defendant had stormed into the suit property and wanted to take possession. He prays that Judgement be entered in his favour in the following terms;
 - a. A declaration that the Plaintiff by Counterclaim is entitled to exclusive and unimpeded right of possession and occupation of all that piece of land known as Nairobi/Block 110/782 (“the suit property”)
 - b. A permanent injunction restraining the 1st Defendant by Counterclaim, whether by himself or his servants or agents or otherwise howsoever from entering, trespassing and or interfering with the plaintiff/defendant’s possession and enjoyment of all that property better known as Nairobi/Block 110/782.
 - c. Costs of this suit together with interest thereon at such rate and for such period of time as this Honourable Court may deem fit to grant
8. PW 1 Dorothy Nanjero an advocate presented an excerpt of the original register of Nairobi Block 110/872. She testified that she received a written brief from Thome Farmers No Ltd to prepare transfers for their shareholders in respect of LR 30/1&2. She received from Thome a share register in which was contained the following information; plot number, name of shareholder, ID number, Title number, share certificate number, amount paid for share and postal address. It was her evidence that share certificate 290 had two plots 863 and 209. She confirmed that according to the register she had Plot no 863 Nairobi Block 110/782 belonged to Gakuya Waweru. She was categorical that she had not processed a title deed in the name of Peter Kamau Munene.
9. She stated that though the Plaintiffs presented her with all the documentation they had, she did not process the title as the beneficiaries did not have a confirmed grant hence she could not process a title. She also clarified that she did not process a title in the name of Rachel Nduta. Upon cross examination she admitted that although Thome Farmers was moribund she still had instructions to process the titles.
10. PW 2 Peter Njoroge testified that he used to guard the suit property on behalf of Wilfred Gakuya from 1992 to 2011. At first he would just collect soil but later started farming. In 2011 he left the estate. However one day in 2018 as he was walking he found people digging on the suit property. He alerted the Plaintiff.
11. The Plaintiff testified as PW 3. He told the court that his late father was the holder of original share certificate which was issued two plots number 209 and 863. After their father died, he started construction but was stopped vide an injunction issued as a result of a succession case which has not been finalized. It was his evidence that he later received information that some strangers were



constructing on the property. This prompted him to report the matter to the police. He asked the court to cancel the title which the 1st Defendant has.

12. The 1st Defendant on his part produced a sale agreement, a title deed, a search certificate and a clearance letter from DCI which was marked for identification. Upon cross examination he told the court that he met the owner at the property and she showed him a copy of title and copy of the ID. He admitted that he did not have the copy of the title in the vendors name, neither did he have a search certificate to prove that he carried out due diligence before purchasing the property. Upon being questioned on the whereabouts of certain documents such as stamp duty certificate and evidence of payment he said that they are in the possession of his advocate who carried out the transaction.
13. Having considered the pleadings, the evidence and the submissions by counsels, the court distills the following issues for determination;
 1. Whether the title to Nairobi/Block 110/782 in the Defendants name should be revoked
 2. Whether a permanent injunction should be issued against the Plaintiff or the Defendant
 3. Whether the Court should award general damages
 4. Who should bear the costs of the suit
14. On the first issue, it is common ground that the Plaintiffs who brought the suit on behalf of the estate of Anthony Gakuya Waweru alias Waweru Gakuya do not have a title document. I will say more about the documents they do have later in this Judgement. On the other hand, the Defendant has a title document. There is no dispute that the title document he holds is in respect of the same property that the Plaintiffs are claiming belonged to the estate of their late father.
15. It was the Defendants evidence that he purchased the suit property from one Rachel Wanjiku Mbugua. He produced a sale agreement to that effect. He insists that he validly obtained the suit property as a bona fide purchaser for value.
16. Section 26 of the [Land Registration Act](#) provides “The certificate of title issued by the Registrar upon registration, or to a purchaser of land upon a transfer or transmission by the proprietor shall be taken by all courts as prima facie evidence that the person named as proprietor of the land is the absolute and indefeasible owner, subject to the encumbrances, easements, restrictions and conditions contained or endorsed in the certificate, and the title of that proprietor shall not be subject to challenge, except— (a) on the ground of fraud or misrepresentation to which the person is proved to be a party; or (b) where the certificate of title has been acquired illegally, unprocedurally or through a corrupt scheme.
17. The courts have had occasion to give judicial interpretation on the approach that a court should take when a title is under challenge. The Court of Appeal in *Munyu Maina v Hiram Gathiha Maina* Civil Appeal No. 239 of 2009 [2013] eKLR, held that where the registered proprietor’s root title is under challenge, it is not enough to dangle the instrument of title as proof of ownership. It is the instrument that is in challenge and therefore the registered proprietor must go beyond the instrument and prove the legality of the title and show that the acquisition was legal, formal and free from any encumbrance including interests which would not be noted in the register.
18. Similarly, in the case of *Funzi Development Ltd & Others v County Council of Kwale, Mombasa* Civil Appeal No.252 of 2005 [2014] eKLR the Court of Appeal, stated that:

“...a registered proprietor acquires an absolute and indefeasible title if and only if the allocation was legal, proper and regular. A court of law cannot on the basis of indefeasibility



of title sanction an illegality or gives its seal of approval to an illegal or irregularly obtained title.”

19. The Supreme Court had the last word on the issue when it stated in the case of *Dina Management versus County Government & Others* Pet No 8 (E010) of 2021) “ Indeed, the title or lease is an end product of a process. If the process that was followed prior to issuance of the title did not comply with the law, then such a title cannot be held as indefeasible”
20. It is evident that the court must interrogate the title that the Defendant has produced and satisfy itself that in this case in which he alleges he purchased the suit property he was a bona fide purchaser of value of a property whose title had been acquired procedurally.
 1. In considering whether the Defendant exercised due diligence as a purchaser I will be guided by the principles set out by the Court of Appeal in *Samuel Kamere v Lands Registrar, Kajiado* Civil Appeal No. 28 of 2005 [2015] eKLR . In this case the Court stated:

“...in order to be considered a bona fide purchaser for value, they must prove; that they acquired a VALID and LEGAL title, secondly, they carried out the necessary due diligence to determine the lawful owner from whom they acquired a legitimate title and thirdly that they paid valuable consideration for the purchase of the suit property...”
21. Juxtaposing these principles to the present case, the Defendant who claims that he purchased the suit property from Rachel Wanjiru Mbugua needed to prove that he carried out due diligence establishing that Rachel Wanjiru was the lawful owner and secondly he needed to prove that he paid valuable consideration for the purchase of the property.
22. The Defendant did not present a search certificate to establish that he confirmed that Rachel Wanjiru was the lawful owner of the suit property. He did not adduce any evidence to prove that he interrogated the root of her title. In this case given that the suit property was one that belonged to a company with shareholders, prudence would have required that he traces the title to the initial share holder. There were other gaps in the Defendants case. He could not prove that he paid valuable consideration for the suit property and neither did he adduce evidence to demonstrate the process he went through to acquire the title.
23. On the other hand the Plaintiffs adduced proof that their late father was a shareholder in Thome who had paid his dues. PW 1 who was responsible for processing titles in the area confirmed that the plot in respect of which the Defendant had a title belonged to the Plaintiffs late father. The only reason the title has not been processed is due to the fact that the estate is still under probate.
24. I therefore find that the title that the Defendant holds is one which cannot be upheld as the process that was used to acquire it was not only unprocedural but is at best opaque and not verifiable. The process does not meet the requirements of Section 26(1)(b) of the [*Land Registration Act*](#).
25. The plaintiffs had prayed for general damages and mesne profits. On the question of trespass, Section 3 (1) of the [*Trespass Act*](#), Cap 294 provides that:

“ Any person who without reasonable excuse enters, is or remains upon or erects any structure on, or cultivates or tills or grazes stock or permits stock to be on, private land without the consent of the occupier thereof shall be guilty of an offence.”



26. In the case of *Entick vs Carrington* (1765) as quoted in the case of *Maina Kabuchwa v Gachuma Gacheru* [2018] eKLR, Lord Camden CJ had this to say:-

“Our law holds the property of every man so sacred, that no man can set his foot upon his neighbour’s close without his leave”.

27. From the evidence that was adduced before me I find that the 1st Defendant trespassed on the property of Anthony Gakuya Waweru. The estate is entitled to damages which I award at a figure of Kshs 500,000
28. The Plaintiff had also sought mesne profits. Section 2 of the *Civil Procedure Act*, Cap 21 of the Laws of Kenya defines mesne profits as follows:-

“mesne profits”, in relation to property, means those profits which the person in wrongful possession of such property actually received or might with ordinary diligence have received therefrom, together with interest on such profits, but does not include profits due to improvements made by the person in wrongful possession;

29. The courts have given judicial interpretation to this section. In the case *Peter Mwangi Mbuthia & Another vs Samow Edin Osman* (Supra), the Court of Appeal held as follows:

“As regards the payment of mesne profit, we think the applicant has an arguable appeal. No specific sum was claimed in the Plaint as mesne profit and it appears to us prima facie, that there was no evidence to support the actual figure awarded...”

30. The Court of Appeal in the case of *Kenya Hotel Properties Limited v Willesden Investments Limited* [2009] eKLR held that

“...once the learned Judge made the award under the subhead “mesne profits” there was no justification for him awarding a further Kshs.10 million under the subhead “trespass”, since both mean one and the same thing.”

31. The Plaintiffs herein did not specifically plead and prove mesne profits. Since the court has already made an award for damages for trespass the claim for mesne profits fails.

32. In the end I find that the Plaintiffs have proved their case on a balance of probability. Judgement is entered for the Plaintiffs against the Defendants in the following terms;

- a. A declaration is hereby issued that the plaintiffs’ father Anthony Gakuya Waweru alias Gakuya Waweru (deceased was a bonafide shareholder of Thome Farmers Company 1 Limited and the rightful allottee/beneficial owner of Plots No.863 alias LR Nairobi Block 110/782 and 209 alias LR Nairobi Block110/698 Thome Farmers Company No. 1 Limited by virtue of share certificate No. 290 (2) shares
- b. An order of cancellation of the certificate of lease in name of 1st Defendant in respect of Nairobi/Block 110/782 is hereby issued
- c. The Plaintiff is awarded Kshs 500,000 general damages for trespass
- d. Thus Defendant is to hand over vacant possession within 180 days in default an eviction to issue to be effected if necessary with the assistance of the nearest police station.
- e. The counterclaim is dismissed



f. The plaintiffs are awarded costs of the suit and counterclaim

**JUDGMENT SIGNED, DATED AND DELIVERED VIA MICROSOFT TEAMS 23RD DAY OF
JANUARY 2025**

JUDY OMANGE

JUDGE

In the presence of:

Mr. Kirwa for 1st Defendant

Court Assistant Meryline

